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<tr><td>DISTRICT COURT, SAN MIGUEL COUNTY, COLORADO<br>305 W. Colorado Ave.<br>P.O. Box 919<br>Telluride, CO 81435</td><td rowspan="3">DATE FILED<br>May 8, 2026 6:17 PM<br>FILING ID: A848236D8D751<br>CASE NUMBER: 2026CV30011<br><br>▲ COURT USE ONLY ▲<br><br>Case No.: 2026CV030011<br><br>Division: 5</td></tr>
<tr><td>Plaintiff: TSG SKI AND GOLF, LLC, a Colorado Limited Liability Corporation,<br><br>v.<br><br>Defendants: JULIE MEEHAN FEE, an individual; MARTINIQUE PROHASKA, an individual; and PAUL WISOR, an individual</td></tr>
<tr><td>Counsel for Plaintiff TSG Ski and Golf, LLC:<br>Troy A. Eid, #21164<br>John A. Wharton, #47776<br>Harriet Retford, #44958<br>GREENBERG TRAURIG, LLP<br>1144 15th Street, Suite 3300<br>Denver, CO 80202<br>(303) 572.6500<br>eidt@gtlaw.com; john.wharton@gtlaw.com; retfordh@gtlaw.com</td></tr>
<tr><td colspan="2">FIRST AMENDED COMPLAINT</td></tr>
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Plaintiff TSG Ski and Golf, LLC ("Telski"), by and through undersigned counsel, makes the following First Amended Complaint against Defendants Julie Meehan Fee ("Fee"), Martinique Prohaska ("Prohaska"), and Paul Wisor ("Wisor") (collectively, "Defendants") and in support states as follows:

## PARTIES, JURISDICTION, AND VENUE

1. TSG Ski and Golf, LLC, is a Colorado Limited Liability Company in good standing with the State of Colorado with its principal place of business at 565 Mountain Village Boulevard, Telluride, CO 81432.

2. Defendant Julie Meehan Fee is a Colorado resident and the former mayor pro tem and councilmember of the Town of Telluride ("Telluride").

3. Defendant Martinique Prohaska is a Colorado resident and the former mayor of the Town of Mountain Village ("Mountain Village").

4. Defendant Paul Wisor is a Colorado resident and the former town manager of Mountain Village but is being sued in his individual capacity.

5. This Court has jurisdiction over the allegations raised in this Complaint pursuant to Article VI, Section 9 of the Colorado Constitution.

6. This court has personal jurisdiction over the Defendants because they are residents of Colorado and the conduct for which this Complaint is based occurred, at least in part, in San Miguel County.

7. Venue is proper pursuant to Colo. R. Civ. P. 98 because the events which gave rise to the causes of action herein largely took place in the $7^{th}$ Judicial District or are closely connected to it and this matter relates to real property located in San Miguel County.

## FACTUAL ALLEGATIONS

8. Plaintiff Telski, more commonly known as the Telluride Ski Resort, is a mountain resort located in the mountains above the Town of Telluride, Colorado.

9. It is one of the few ski resorts in the United States to remain independently owned and operated in a remote location far from major urban areas and international airports.

10. The Town of Telluride is connected to the Town of Mountain Village, located at the base of the resort, by a gondola which carries visitors back and forth between the two communities and the ski mountain.

11. Defendants are former and current local government officials in the Towns of Telluride and Mountain Village who have abused their political office to interfere with the operations of Telski for their own personal financial gain.

### A. The Offer to Purchase and its Appendix B

12. On December 26, 2025, defendants Fee and Prohaska contacted Telski owner Chuck Horning and asked to arrange a meeting in California to discuss a pending ski patrol strike.

13. At the time Ms. Fee was still serving as mayor pro tem of Telluride and Ms. Prohaska was still serving as mayor of Mountain Village.

14. Ms. Fee represented that she had something important to communicate and that it would potentially resolve the impasse with the ski patrol union but did not provide any further details.

15. She suggested that they meet in California, where Horning resides.

16. On Sunday December 28, 2025, at around 10 a.m., Ms. Fee and Ms. Prohaska met with Baylor Blanchard and Lupe Mendoza, who represented Telski, at a coffee shop in Newport Beach, California.

17. Ms. Fee and Ms. Prohaska stated that they represented a group of investors who were interested in purchasing the resort.

18. Ms. Fee stated that if the current owner of Telski agreed to sell the resort and add partners and investors, she could "make a phone call today to get the union ski patrollers back to work the next day."

19. The next day, on Monday, December 29th, the two government officials met with Horning to discuss their proposal in greater detail.

20. Their proposal is documented in an "Offer to Purchase" dated December 29, 2025 ("Offer to Purchase"), attached to this Amended Complaint as **Exhibit 1**. This document is executed by both Ms. Fee and Ms. Prohaska and purports to be submitted on behalf of "Telluride Ski Resort Fund, a Colorado entity, controlled by Martinique Prohaska and Julie Meehan Fee."

21. The Offer to Purchase states that "[t]he transaction will be structured as an acquisition by Buyer of a 51% (fifty one percent) acquisition of substantially all assets of the Seller associated with the Telluride Ski Resort, including, without limitation, goodwill, tangible and intangible property, intellectual property, customer and vendor relationships, contracts, and all rights necessary for continued operation of the business, and ancillary assets owned by the Seller located in San Miguel County, CO" for $127,500,000.

22. The Offer to Purchase continues: "Martinique Prohaska, Julie Meehan Fee, and Chuck Horning shall serve as Managing Partners, with Martinique Prohaska and Julie Meehan Fee collectively holding and exercising fifty-one percent (51 percent) of the Managing Partner control."

23. Telski did not accept the offer and did not consent to its non-disclosure and dispute resolution provisions.

24. The Offer to Purchase includes an Appendix B entitled "Additional Consideration." This document states that "[i]mmediately following the execution of this Agreement the following will occur:

a. **Ski Patrol.** Buyer will cause the Town of Mountain Village and the Town of Telluride to take commercially reasonable efforts to broker a cessation to the Ski Patrol strike with Patrol agreeing to the offer made by Seller to Patrol.

b. **Water Prices.** Buyer will cause the Town of Mountain Village and the Town of Telluride to hold water prices for Seller's snowmaking at 2024 levels for the 2025-2026 season.

c. **Housing.** Within three (3) months of Closing, the Town of Mountain Village and the Town of Telluride shall enter into partnerships with TSG to ensure stable, high quality housing for TSG's employees.

d. **Flights.** Within six (6) months of Closing, the Town of Mountain Village and the Town of Telluride shall modify regional spending on flight development within targeted key markets.

e. **Capital Investment.** Buyer commits to at least $50,000,000 in capital upgrades to the Telluride Ski Resort."

25. With the possible exception of the capital commitment in subparagraph (e), these are all official public actions which defendants Fee and Prohaska purport to be able to deliver while acting as a representative of an investment fund with undisclosed participants.

26. During the pendency of these discussions, the ski patrol was engaged in a strike, which extended from December 27, 2025 through January 7, 2026.

27. The ski patrol strike resulted in a ten-day closure of the resort at the height of the holiday season and, on information and belief, cost Telski damages reasonably estimated at several million dollars.

28. The strike and resulting closure also substantially damaged many smaller businesses in the community which rely on these peak holiday days to make ends meet.

29. Defendants Fee and Prohaska represented that they had the power to end the strike or, by implication, to prolong it – and the resort's closure – at the expense of Telski, its employees, and the community.

30. These are not the only specific representations made by the two governmental officials.

31. Defendants Fee and Prohaska also stated that "Buyer will cause the Town of Mountain Village and the Town of Telluride to hold water prices for Seller's snowmaking at 2024 levels for the 2025-2026 season."

32. Telski uses water for snowmaking and summer irrigation pursuant to a Water Management Agreement by and between a predecessor entity to Telski and the Mountain Village Metropolitan District, dated 1998. Under this Agreement and its predecessor agreements, Telski

assigned to the municipal district certain water rights in its possession and allocated the costs of operation of the water system, charges to be paid by Telski and priority of water uses in the event of a shortage.

33. The two Towns have been contemplating a substantial increase in water prices for snowmaking, notwithstanding current rates paid pursuant to existing contracts, and have scheduled public meetings to discuss the potential increase.

34. Defendants, and especially defendant Paul Wisor, have been heavily involved in these efforts and purport to have the power to halt them in the event of a sale.

35. Additionally, defendants Fee and Prohaska represented that "[w]ithin three (3) months of Closing, the Town of Mountain Village and the Town of Telluride shall enter into partnerships with TSG to ensure stable, high quality housing for TSG's employees."

36. On information and belief, Telluride has been blocking Telski from developing a new employee housing unit and demanding the transfer of substantial valuable land for public use in consideration for building permits – in keeping with is part of a pattern and practice in both towns that has thwarted or significantly scaled back the construction of several housing projects and resort hotels over the past decade.

37. Finally, Defendants stated that "[w]ithin six (6) months of Closing, the Town of Mountain Village and the Town of Telluride shall modify regional spending on flight development within targeted key markets."

38. Telski has been trying to obtain more frequent regional air service for several years. The Towns of Telluride and Mountain Village are both represented on the Colorado Flight Alliance Board of Commissioners.

39. Thus, the list of "Additional Consideration" in Appendix B of the Offer to Purchase directly pertains to past or currently contemplated adverse official actions of the governments of Telluride and Mountain Village which have imposed significant direct and indirect costs on Telski.

40. Defendants Fee and Prohaska submitted a signed Offer to Purchase Telski, which specifically represented that they had the power to deliver certain official public acts as consideration for the purchase.

41. They also further elaborated on this theme when they met with representatives from Telski. Some of these meetings were audio recorded, and a partial transcript is attached to this Amended Complaint as **Exhibit 2**.

42. With regard to the ski patrol strike, Mr. Horning clarified "[s]o we sign this, and they go back to work." Ms. Prohaska replied "Yes." Transcript at 34: 9-11.

43. Thus, Defendant Prohaska clearly stated that she had the power to control the ski patrol strike and that she would exercise this power if Telski sold the resort to her proposed group, including Ms. Fee, who was present when these representations were made and signed the associated formal documents.

44. The legal documents are several pages long, and the Defendants also represented that they represented an organized group of investors. On information and belief, these preparations substantially predated the ski patrol strike.

45. Defendants Prohaska and Fee, in association with Paul Wisor, deliberately provoked the ski patrol strike to attempt to force Mr. Horning to sell Telski to a coalition of private actors and government officials.

46. During this meeting, Defendants also made clear representations that they could make government permitting and other obstacles that Telski faced go away.

47. Ms. Prohaska told Mr. Horning, the owner of Telski, that the "Board" of the prospective buyer would be able to "effectuate some of these goals. … [a]nd getting more air service is one of these goals. Getting more housing is one of these goals, and also ending the strike immediately is one of these goals." Transcript at 31:8-9; 11-14.

48. "We all on this Board are working together to figure this out with the governments and the ski resort." *Id.* at 32:24-33:1.

49. Defendant Fee explained that their arrangement would be, "Basically, a shortcut of a lot of government permission . . . because government is a part of the process." *Id.* at 39: 8-12.

50. Thus, defendant Prohaska clearly stated that the striking ski patrollers were acting on her instructions and that she had the power to bring the strike to a close if Mr. Horning sold a controlling interest in the resort.

51. Furthermore, these government actions did not refer exclusively to future actions, but instead to ongoing matters that both predated the Purchase Offer and postdated it.

52. Thus, defendants stated, *in writing*, that they were withholding government approvals and interventions that were within their power until and unless Telski cooperated with them in a personally interested financial transaction.

53. Upon information and belief, these public acts, taken together, represent millions of dollars of economic value to Telski.

54. Even if these public acts do not fall within the sole discretion of the Defendants, their self-proclaimed role in advancing or blocking public actions of economic importance to

Telski for their own undisclosed private financial ends – and in prospectively imposing continued costs on Telski unless and until their forced sale of Telski was achieved –played a material role in imposing substantial financial costs on Telski.

55. The Telluride Municipal Code provides that "[a] Town official or employee shall not.. [e]ngage in a substantial financial transaction for his or her private business purposes with a person whom he or she inspects or supervises in the course of his or her official duties." Telluride Municipal Code Sec. 2-4-50(b)(3).

56. Ms. Fee routinely exercised official authority over Telski, and, furthermore, has openly represented that she intended to use that authority to reward Telski for engaging in this business transaction in a specified list of areas.

57. The Municipal Code also prohibits a Town official or employee from "[p]erform[ing] an official act directly or substantially affecting to its economic benefit a business or other undertaking in which he or she either has a substantial financial interest or is engaged as counsel, consultant, representative or agent." Telluride Municipal Code Sec. 2-4-50(b)(3)&(4).

58. Finally, it is forbidden to "[a]ssist any person for a fee (other than that charged for that service by the Town) or other compensation in obtaining any contract, claim, license, permit, permission, approval or other economic benefit from the Town, (except as permitted pursuant to Section 2-4-100); provided that a Town official may assist any person for a fee in processing a claim or obtaining a license, permit, permission or approval with and from any Town administrator or employee (or board or commission other than one [1] of which the official is a member) which relates to matters other than the official's duties as a board or commission member, and which is granted or issued in the ordinary course of business." Telluride Municipal Code Sec. 2-4-50(b)(5). The offer of a senior management or board position would constitute compensation under this provision.

59. Similarly, Mountain Village Ordinance No. 2022-06 establishes a code of ethics for the home rule municipality of Mountain Village.

60. Under this code, which is expressly intended to mirror similar provisions under Colorado law, "[a] Town official or employee should not acquire or hold an interest in any business or undertaking which they have reason to believe may be directly and substantially affected to its economic benefit by official action to be taken by an agency over which they have substantive authority." Mountain Village Code of Ethics § 1-4(B).

61. In addition, "A Town official or employee should not perform an official act directly and substantially affecting a business or other undertaking to its economic detriment when they have a substantial financial interest in a competing firm or undertaking." Mountain Village Code of Ethics § 1-4(D).

**B. Defendant Wisor**

62. On or about January 13, 2026, Telski submitted a request under the Colorado Open Records Act ("CORA") §24-72-201, *et. seq.,* for documents related to the Offer for Purchase and other documents that might be relevant to the matters addressed in Appendix B to that document.

63. Telluride produced a Microsoft Word document entitled "Non-Disclosure Agreement," attached as **Exhibit 3** to this Complaint along with a screenshot showing the dates when it was created and its authorship. This document was drafted by Defendant Paul Wisor and "last modified" by Mayor Teddy Erico.

64. This draft agreement states that "[a] Recipient of Confidential Information shall use the Confidential Information solely for the purpose of evaluating and negotiating the sale of Telluride Ski and Golf Resort and related assets, in Telluride and Mountain Village, Colorado (the "Transaction"), any discussions regarding the Transaction or ancillary discussions on or after December 26, 2025, and only during the Disclosure Period (as defined in Paragraph 8)." Thus, it unambiguously pertains to the Offer to Purchase.

65. According to the version history, this draft agreement appears to have been drafted by Town Manager Paul Wisor on January 3, 2026.

66. Telluride has declined to answer questions, or provide any additional information, regarding where this draft agreement was located or who had access to it.

67. This document confirms that defendants Fee and Prohaska were not the only public officials that had knowledge of the Offer of Purchase and were directly involved in the effort to use government pressure to force a sale of the resort.

68. Thus, there is evidence that defendant Wisor was also actively involved in the events that form the basis of these claims and abused his own public offices for personal gain at the expense of Telski.

69. Defendant Wisor is a licensed attorney and drafted at least one contract related to the proposed transaction.

70. Defendants Fee and Prohaska resigned their public offices after the contents of these proposals and documents were made public, and defendant Wisor is on administrative leave pending investigation.

71. Defendants Fee and Prohaska submitted an Offer to Purchase Telski that specifically represented that they had the power to deliver certain official public acts as consideration for the purchase.

72. Defendant Wisor was directly, actively, and knowingly involved in the preparation of the documents that Fee and Prohaska signed and submitted and the official actions which they proposed to offer as consideration.

73. Municipal law clearly forbids public officials from using their official powers for private gain, including where (as here) such private transactions were intended to be kept secret from the public they serve.

74. These official acts all relate to actual and immediate business that Telski had pending before the two towns in the period immediately preceding and following the submittal of the Offer to Purchase.

75. On information and belief, these public acts, taken together, represent millions of dollars of economic value to Telski.

76. Defendants have used their official powers to harass and pressure Telski into engaging in a financial transaction that it would not otherwise have contemplated, while promising to reward Telski – so long as it sold out to them and kept quiet.

## FIRST CLAIM FOR RELIEF
### Tortious Interference with Prospective Business Relations – Against all Defendants

77. Telski realleges and incorporates by reference the paragraphs above as though fully set forth within.

78. Defendants Fee and Prohaska submitted an Offer to Purchase Telski and specifically represented that they had the power to control a labor strike, and other resources, that prevented the resort from being open and operational from December 27, 2025 through January 7, 2026.

79. Defendant Wisor was directly, actively and knowingly involved in the preparation of the documents that Fee and Prohaska signed and submitted and the official actions which they proposed to offer as consideration.

80. Telski had reasonable expectations that it would sell lift tickets and other goods and services to customers to prospective customers of the resort from December 27, 2025 through January 7, 2026.

81. Defendants knew that Telski had reasonable expectations of entering into business relationships with these prospective customers of the resort.

82. Based on the conduct described in this Complaint, Defendants intentionally induced or caused the prospective customers of the resort to not to enter into contracts with the resort.

83. Defendants' conduct was improper because they used their office, threats of regulation and other official governmental action, and confidential information to gain personal advantages for purchasing Telski, rather than for a lawful or legitimate governmental or competitive reason.

84. But for Defendants' interference, Telski would have been operational and able to contract with and serve its customers, business partners, and the community.

85. On information and belief, this represents millions of lost dollars of economic activity and, as a result of Defendants' conduct, Telski suffered financial damages.

86. As a result, Telski has suffered damages that shall be proven at trial but, on information and belief, are reasonably estimated at several million dollars.

87. The financial damages inflicted by the Defendants and their self-serving and illegitimate scheme continue to accrue daily.

## <u>SECOND CLAIM FOR RELIEF</u>
### Civil Conspiracy – Against all Defendants

88. Telski realleges and incorporates by reference the paragraphs above as though fully set forth within.

89. They actively cooperated to prepare the Offer to Purchase and/or related documents and communications.

90. Defendant Wisor was directly, actively and knowingly involved in the preparation of the documents that Fee and Prohaska signed and submitted and the official actions which they proposed to offer as consideration.

91. On information and belief, they also colluded and acted in concert to force Telski into a position where it would be pressured to take this agreement by using their official powers to engage in economic harassment, act or withhold action on official matters, and tortiously interfere with Telski's contractual arrangements and prospective business relations.

92. Defendants had common goal or objective of harming Telski by keeping the resort closed and/or leveraging their position to purchase Telski under favorable terms.

93. Defendants had a meeting of the minds on that objective and their course of action to achieve it.

94. Defendants Fee, Prohaska, and Wisor agreed to engage in the wrongful, unlawful acts described in the previous causes of action, and to engage in a breach of their fiduciary duty under C.R.S. § 24-18-103.

95. On information and belief, these acts, taken together, represent millions of dollars of economic value to Telski.

96. As a result, Telski has suffered damages that shall be proven at trial but, on information and belief, are reasonably in excess of several million dollars.

97. These damages continue to accrue daily.

## PRAYER FOR RELIEF

WHEREFORE, based on the foregoing, TSG Ski and Golf, LLC respectfully requests entry of judgment in its favor and an Order from the Court:

A. Awarding Telski money damages, including all actual, consequential, special, liquidated, and exemplary damages as may be provided by law or contract;

B. Awarding Telski attorneys' fees and costs;

C. Awarding Telski prejudgment, post-judgment, and other interest as permitted by law; and

D. Awarding Telski such other and further relief as the Court deems appropriate.

Respectfully submitted this 8th day of May 2026.

GREENBERG TRAURIG LLP

/s/ *Troy A. Eid*
Troy A. Eid, #21164
John A. Wharton, #47776
Harriet Retford, #44958
*Attorneys for Plaintiff TSG Ski and Golf, LLC*

Plaintiff's Address:
565 Mountain Village Boulevard
Telluride, CO 81432

**CERTIFICATE OF SERVICE**

I hereby certify that on this 8th day of May 2026, a true and correct copy of the foregoing Complaint was electronically filed with the Clerk of the Court using the Colorado Courts E-Filing system.

/s/ *Karen R. Loveland*________________
Karen R. Loveland